Article 13, Section 1 – Period of Eligibility

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13.01.01 Period of Eligibility

A. General

This article provides staff with guidelines for determining the period of time to which a person is eligible for Medi-Cal, including retroactive eligibility regulations. MEM 50195

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13.01.02 Beginning Date of Eligibility

A. Medi-Cal Only Applicants

MEM 50193

The beginning date of eligibility is either:

- The first day of the month of application, if all eligibility requirements of the appropriate Medi-Cal program are met any time during that month
- The first day of the month after the month of application, during which the eligibility requirements of the appropriate Medi-Cal programs are met.

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B. Inmates of an Institution

MEM 50273

Inmates of a public or private institution as defined in MPG Article 6, Section 1, are ineligible to Medi-Cal from the day they enter through the day they leave the institution.

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C. Qualified Medicare Beneficiary (QMB)

MEM 50258

For Medicare Part A recipients, the effective date of eligibility for QMB benefits is the first day of the month following the date on which the worker makes the determination of eligibility.

For those applicants who are required to enroll in Medicare Part A during the general enrollment period of January through March, July 1 is the effective date of eligibility for QMB benefits.

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D. CalWORKs, SSI/SSP and Other PA Applicants

MEM 50509

For the purposes of this section, applicants include:

- People who apply for Medi-Cal under any Public Assistance program.
- People who apply for CalWORKs and meet eligibility requirements in the month of application but whose CalWORKs is denied because they no longer meet CalWORKs eligibility requirements at the time CalWORKs granting action would be taken.
- People who apply for SSI/SSP and meet the eligibility requirements but are denied because they die before the SSI application can be processed. An application for Medi-Cal must be filed on their behalf within 30 days of receipt of written notice of denial.

The beginning date of eligibility is established once the applicant

meets the following requirements:

- Citizenship/alien status
- Residence
- Linkage
- Property and income requirements of the appropriate program.

Once these requirements are met, the beginning date of eligibility is either:

- The first day of the month of application, if eligibility requirements have been met any time in that month.
- The first day of the month in which the requirements were met.

13.01.03 Period of Eligibility

A. Introduction

Once the beginning date of eligibility is established, the period of eligibility is determined as shown in this section. MEM 50195

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B. People Eligible as MI or MN

Eligibility begins the date specified in MPG 13.01.02.A, above, and continues through each successive month during which the beneficiary meets the basic program requirements detailed in MPG Article 5, and meets all of the following conditions: MEM 50195

- Has cooperated in providing the County with Social Security and health insurance claim numbers
- Has cooperated in meeting general responsibilities detailed in MPG Article 4 (for example, completed forms, provided documents necessary to determine SOC, reported changes that affect eligibility, cooperated with State QC investigations, and reported and utilized other health coverage)
- Has met the property requirements specified in MPG Article 9, at some time during the month
- Has met the citizenship, residence and institutional status requirements as specified in MPG Articles 6 and 7, at some time during the month

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C. People Eligible to CalWORKs or SSI/SSP

Eligibility begins with the date specified in MPG 13.01.02.D, above, and continues through each successive month in which the person is determined to be eligible to CalWORKs or SSI/SSP. MEM 50195

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D. Other PA Recipients

The period of eligibility for Medi-Cal for people eligible as Other PA recipients begins with the date specified in MPG 13.01.02.D, above. Eligibility continues through each successive month during which the person meets all eligibility requirements of the appropriate Other PA category. MEM 50195

Other PA recipients include:

- People receiving Four Month Continuing Medi-Cal after CalWORKs discontinuance
- Persons receiving TMC

- People eligible to Medi-Cal under the Twenty Percent Social Security Increase regulation (Pickle eligibles) as defined in MPG Article 5, Section 10.

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E. Minor Consent Services

The period of eligibility for Medi-Cal for a child applying for Minor Consent services (MPG Article 4, Section 4) begins with the date specified in MPG 13.01.02.A, above, and may continue through each successive month during with the child meets both of the following conditions:

- The conditions specified in B, above
- Submits a completed and signed form MC 4026 to the County during the month in question which states that the child has a need of services related to sexual assault, drug or alcohol abuse, pregnancy, family planning, or venereal disease.

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F. Institutional Status

The period of eligibility shall be modified for any portion of a month in which a person is ineligible due to institutional status, as described in MPG Article 6, Section 1.

MEM 50273

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13.01.04 Final Date of Eligibility

A. Final Date of Eligibility

When the person or family no longer meets all eligibility requirements, aid for that person or family shall be discontinued in accordance with regulations regarding timely and adequate notice of action. (See MPG Article 4, Section 17.)

MEM 50195

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13.01.05 Retroactive Eligibility

A. Introduction

Applicants may apply for Medi-Cal for any of the three months immediately preceding the month of application or reapplication. MEM 50197

Exception: There are no retroactive benefits for QMB.

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B. Eligibility Criteria

All of the following criteria must be met in the month(s) for which Medi-Cal is requested to establish eligibility to retroactive coverage: MEM 50197

- The applicant received health services in the retroactive month
- The applicant was not previously denied Medi-Cal in the month in question, unless the applicant was denied due to:
  - County error
  - The applicant's failure to cooperate, when that failure was due to circumstances beyond the control of the applicant
- Had the application been made, the applicant would have been eligible for one of the following programs:
  - CalWORKs
  - SSI/SSP
  - Other PA
  - Medi-Cal Special Treatment Programs
  - Miscellaneous Special Programs
  - MN (see D, below for people applying on the basis of disability)
  - MI (see exceptions in C, below, for people 21 years of age or older.

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C. Exception for People Age 21 Years of Age or Older

Applicants 21 years of age or older shall be retroactively eligible as a medically indigent person only if one of the following conditions exists: MEM 50197

- The person was residing in a skilled nursing intermediate care facility during any part of both:
  - The month of application
  - The month for which retroactive eligibility is requested
- The woman has confirmation that she was pregnant in the retroactive month.

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D. Application

Applicants shall follow the retroactive Medi-Cal application process outlined in MPG Article 4, Section 2. The application shall be treated MEM 50197

Process

as any other application. A person applying on the basis of disability shall have the beginning date of their disability determined by DDSD prior to the worker determining retroactive eligibility (MPG Article 5, Section 3). Applicants meeting all other eligibility criteria shall be entitled to Medi-Cal benefits for the retroactive application period effective the month in which the disability began, as established by DDSD.

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